

Bihar Agricultural and Rural Area Development Agency (Repeal) Act, 2017

Source: <https://indiankanoon.org/doc/16901120/>

Skip to main content

Legal Document View

Tools for analyzing structure and cite text of judgments

Unlock Advanced Research with

PRISM

AI

Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions

-

Know your Kanoon

-

Doc Gen Hub

-

Counter Argument

-

Case Predict AI

-

Talk with IK Doc

-

...

Upgrade to Premium

[Cites

0

, Cited by

1

]

State of Bihar - Act

Bihar Agricultural and Rural Area Development Agency (Repeal) Act, 2017

BIHAR

India

Bihar Agricultural and Rural Area Development Agency (Repeal) Act, 2017

Act 6 of 2018

Published in Bihar Gazette on 15 May 2018

Commenced on 1 July 2017

[This is the version of this document from 15 May 2018.]

AN ACT

To repeal the Bihar Agricultural and Rural Area Development Agency Act, 1978 (Bihar Act 3, 1979)

Be it enacted by the legislature of the State of Bihar in the sixty eighth year of the Republic of India as follows :?

1.

Short title, extent and commencement.? (1) This Act shall be called Bihar Agricultural and Rural Area Development Agency (Repeal) Act, 2017

(2)

It shall extend to the whole of the State of Bihar,

(3)

It shall come into force with effect from 01.07.2017.

2.

Definitions. ? In this Act, unless otherwise requires in the context. -

(i)

?Act? means Bihar Agricultural and Rural Area Development Agency Act, 1978 (Bihar Act 3, 1979);

(ii)

?Agency? means Command Area Development Agency constituted under Agricultural and Rural Area Development Agency Act, 1978 (Bihar Act 3, 1979);

(iii)

?Government? means Government of Bihar;

(iv)

?Rules? means rules made by the State Government under Section-38 of the Bihar Agricultural and Rural Area Development Agency Act, 1978 (Bihar Act 3, 1979);

3.

Vesting of assets and liabilities of the Command Area Development Agencies in the Water and Land Management Institute (WALMI), Patna. ?On and from the date of commencement of this Act, all assets and liabilities of the Command Area Development Agencies shall vest in the Water and Land Management Institute (WALMI), Patna constituted under the administrative control of the Water Resources Department under the Societies Act.

4.

Absorption of officers and employees of Command Area Development Agencies.? On and from the date of repeal of the Act, absorption of all officers and employees of the Command Area Development Agencies, shall be made to the vacant posts of the similar payscale under the Water and Land Management Institute (WALMI) , Patna or after creating need based posts of similar pay scale on similar service-conditions and if necessary, Rules may be made by the Institute with the approval of the State Government for the purpose of proper management of assets and Liabilities.

5.

Power of the State Government.?The State Government shall have power, authority and jurisdiction to issue such order/direction or instructions which it may deem proper and necessary for the removal of situations and problems arising in the implementation of the provisions of this Act.

6.

Repeal and savings.? (1) The Bihar Agricultural and Rural Area Development Agency Act, 1978 (Bihar Act 3, 1979) is hereby repealed. Rules/Order/Resolution etc. are hereby repealed.

(2)

Notwithstanding such repeal, anything done or any action or decision taken under the said Act shall be deemed to be valid and any proceeding including penal, initiated under the said Act shall continue till the conclusion of the said proceeding as if the Act exists for this purpose and any case relating to the continuing proceeding or decision taken shall not lie before any court on the ground that the said Act has been repealed.

By order of the Governor of Bihar, MANOJ KUMAR, Joint Secretary to the Government

Related AI tags, queries and research notes

Translation